

AUDIT RIGHTS — LICENSOR RESTRAINT POLICY

Supplementary Clause to Intellectual Property License Agreements

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PREAMBLE

This clause supplements and forms part of each Intellectual Property License Agreement issued by Licensor in connection with the HST AI Architecture (with Closed IF Set) and/or the Advanced Antimatter Systems (collectively, the "Agreements"). Where this clause conflicts with the audit provisions of the applicable Agreement, this clause shall prevail with respect to the conditions and manner of Licensor's exercise of audit rights.

Licensor acknowledges that, while he retains full and unconditional audit rights as set forth in the Agreements (Section 15 of the Antimatter Agreement and Section 7 of the HST AI Agreement), the exercise of those rights carries costs, creates friction, and may be disruptive to the Licensee's operations. Licensor therefore adopts the following voluntary policy of restraint, which reflects his genuine intent to exercise audit rights only as a last resort, and only when there is clear, objective cause to do so.

This policy of restraint is a statement of Licensor's intentions and does not constitute a waiver of any audit right, nor does it create any legally enforceable obligation on Licensor to refrain from exercising audit rights. All substantive audit rights described in the Agreements remain fully intact.

1. Licensor's Commitment to Audit Restraint

1.1 General Disposition. It is not in Licensor's interest to conduct audits as a matter of routine, as a tool of pressure, or in response to minor discrepancies. Licensor does not intend to initiate an audit of Licensee's records, revenues, or production figures unless one or more of the Trigger Conditions defined in Section 2 below is clearly and objectively satisfied.

1.2 Presumption of Good Faith. Licensor shall presume that Licensee is acting in good faith and reporting accurately unless specific, observable facts provide reason to conclude otherwise. This presumption shall inform Licensor's decision at every stage before an audit is initiated.

1.3 Preference for Dialogue. Before considering an audit, Licensor shall first attempt to resolve any concern through direct written communication with Licensee. Licensor shall allow Licensee a reasonable opportunity to clarify, correct, or explain any apparent discrepancy before escalating to a formal audit procedure.

2. Trigger Conditions for Audit Initiation

2.1 Licensor shall only initiate a formal audit when at least one of the following Trigger Conditions is present, and when the preliminary steps in Section 3 have been completed without satisfactory resolution:

Trigger A — Prolonged Non-Payment

Licensee has failed to make a payment that was due under the applicable Agreement, and such failure remains uncured for a continuous period of sixty (60) days or more beyond the original due date, despite Licensor having issued at least one written payment reminder after the due date. For the avoidance of doubt, a single missed quarterly royalty payment that is cured within sixty (60) days of the due date does not satisfy this Trigger Condition.

Trigger B — Extended Reporting Silence

Licensee has failed to submit any required report (quarterly revenue report, annual production report, or any other mandatory periodic report under the applicable Agreement) for a period of ninety (90) days or more beyond the date on which such report was due, and has not provided any written explanation for the delay within thirty (30) days of Licensor's written inquiry.

Trigger C — Material Inconsistency in Reported Data

Licensor has specific, documented reason to believe that reported revenue, production quantities, or royalty calculations contain a material error or misrepresentation — such as where figures submitted by Licensee are internally inconsistent, contradict publicly available information about Licensee's commercial activities, or diverge significantly from prior reporting periods without credible explanation provided by Licensee.

Trigger D — Repeated Pattern of Underpayment

A prior audit or other credible evidence has revealed underpayment in excess of five percent (5%) of the amount due, and Licensor has reasonable grounds to believe the pattern may be continuing in subsequent periods. In this context, a single corrected underpayment that was promptly remedied shall not alone constitute a sufficient basis for a further audit in the immediately following period.

Trigger E — Near-Total Communication Breakdown

Licensee has ceased responding to Licensor's written communications entirely for a period of sixty (60) days or more, despite multiple contact attempts by Licensor through the notice channels specified in the applicable Agreement, and Licensee's commercial operations appear to be continuing. This includes situations where Licensee is reachable but is systematically ignoring obligations under the Agreement.

3. Mandatory Pre-Audit Steps

3.1 Before initiating a formal audit, Licensor shall complete each of the following steps, in order, unless Trigger E (communication breakdown) applies and renders these steps impossible:

(a) **Written Notice of Concern.** Licensor shall send a clear written notice to Licensee identifying the specific concern (e.g., the missed payment, the overdue report, or the apparent inconsistency) and requesting a response or corrective action within twenty-one (21) days.

(b) **Follow-Up Communication.** If Licensee does not respond within the twenty-one (21) day period, Licensor shall send a second written notice stating that the matter

remains unresolved and that Licensor is considering the exercise of audit rights. Licensee shall be given a further fourteen (14) days to respond.

(c) Good-Faith Discussion. If Licensee responds but the concern is not resolved to Licensor's reasonable satisfaction, Licensor shall engage in at least one good-faith discussion (whether by written exchange, video call, or meeting) before formally appointing an auditor.

3.2 The pre-audit steps are waived in situations where Trigger E is satisfied and Licensee has made itself genuinely unreachable despite multiple documented attempts by Licensor.

4. Frequency and Scope of Audits

4.1 Licensor shall not initiate more than one audit per calendar year unless a prior audit has revealed intentional misrepresentation or fraud, in which case an additional audit in the same or following year may be warranted.

4.2 Each audit shall be scoped as narrowly as is reasonably practicable to address the specific concern that triggered it. Licensor shall not use an audit triggered by one concern as a blanket examination of all of Licensee's records beyond what is necessary to resolve that concern and verify overall compliance.

4.3 Licensor acknowledges that audits are disruptive and costly for both Parties. Licensor shall cooperate with Licensee in scheduling audits at mutually convenient times and shall give reasonable advance notice as required by the applicable Agreement.

5. Preservation of Contractual Audit Rights

5.1 Nothing in this clause constitutes a waiver, limitation, or modification of Licensor's audit rights as set forth in the applicable Agreements. All audit rights remain in full force and effect and may be exercised by Licensor at any time in accordance with those Agreements.

5.2 This clause represents Licensor's voluntary statement of intended practice only. It is not legally binding on Licensor and does not create any enforceable right in Licensee to demand that Licensor refrain from exercising an audit right, or to challenge or invalidate an audit on the basis that a Trigger Condition was allegedly not met.

5.3 Licensor reserves the right to revise or withdraw this restraint policy by providing written notice to Licensee, effective upon receipt. Any such revision does not affect audits already initiated prior to such notice.

6. Licensor's Constructive Approach

6.1 Licensor's primary interest is in the successful commercialization of the Licensed IP and in a stable, long-term relationship with Licensee. Licensor recognizes that audit proceedings consume resources and can damage trust, and that a cooperative Licensee who communicates openly and pays on time will not, under normal circumstances, be subjected to an audit.

6.2 Licenser strongly encourages Licensee to raise any difficulties with payments, reporting, or operations proactively and in writing. Transparent communication from Licensee will almost always be sufficient to prevent audit proceedings from becoming necessary.

6.3 Licenser views audits as a tool of last resort — available when necessary to protect legitimate interests, but not something to be exercised lightly, routinely, or as an expression of distrust. This clause is written in that spirit.

Issued and adopted by Licenser:

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Signature: _____

Date: _____